

SECTION 10

The Justice System

The Supreme Court of Canada named the over-incarceration of Indigenous people a crisis in 1999. Twenty-six years later, Indigenous adults are incarcerated at 10.2 times the non-Indigenous rate, Indigenous women at 18.4 times, and two-thirds of all Indigenous inmates have passed through the foster care system Section 9 documented. This is the adult end of the pipeline Section 9 opened.

In 2005, the United Nations Working Group on Arbitrary Detention visited Canada and raised concerns about the overrepresentation of Indigenous people in Canadian prisons. Twenty years later, in its August 4, 2025 report, the same Working Group declared itself “deeply concerned” — the same concern, documented again, after two decades. In 1999, the Supreme Court of Canada called this a crisis. In 2012, it called it Canada’s failure of the Aboriginal peoples. In 2015, the Truth and Reconciliation Commission’s Call to Action 30 demanded elimination within a decade. That decade expired in 2025. The crisis, by every available measure, has deepened.”

This section documents the Canadian justice system as it operates against Indigenous adults in 2026. The section builds on every preceding section of this report but is most directly connected to Section 9’s child welfare analysis: two-thirds of Indigenous people in Canadian federal custody have been in foster care at some point in their childhood. The apprehension statistics documented in Section 9 are the childhood-stage data for the incarceration statistics documented here. The same population moves through the same administrative failure, across the life course this report has been tracing since Section 1.

Six findings structure the section. First, that the 2026 Statistics Canada data release documents Indigenous adult incarceration at 10.2 times the non-Indigenous rate across six reporting provinces, with Alberta specifically at 10.2 times — and the overrepresentation widening every year for five consecutive years. Second, that Indigenous women specifically have seen the sharpest deterioration: the overrepresentation index for Indigenous women rose from 12.6 to 18.4 between 2019/2020 and 2023/2024, with Indigenous women at 50 percent of all federally incarcerated women and 65 percent of women in maximum security custody. Third, that the Gladue and Ipeelee jurisprudence establishing the Supreme Court’s direction on Indigenous sentencing has been, in the characterization of former Justice Harry LaForme, used “as a sword instead of a shield” by Corrections Canada. Fourth, that the United Nations Working Group on

Arbitrary Detention's August 2025 report establishes that federal compliance with international obligations on Indigenous detention has not meaningfully improved in twenty years. Fifth, that the foster-care-to-prison pipeline is statistically documented, named by Indigenous scholars including Dr. Pamela Palmater, and traced through the specific mechanism Section 9 established. Sixth, that the cost of incarceration vastly exceeds the cost of the disability support that this report documents as being withdrawn — provincial incarceration at \$60,000 to \$80,000 per person per year versus AISH at \$20,772 — making AISH destabilization a fiscal transfer into the corrections budget via the very population whose disability benefits are being reduced.

Part 1: The scale of overrepresentation in 2026

Statistics Canada, January 14, 2026

On January 14, 2026, Statistics Canada released The Daily report titled “Overrepresentation of Indigenous and Black adults in provincial and federal custody.” The release represents the most comprehensive primary-source documentation of Indigenous overrepresentation in Canadian custody available as of the publication of this report. The findings, drawn from the six provinces currently reporting to the Canadian Correctional Services Survey — Prince Edward Island, Nova Scotia, Ontario, Saskatchewan, Alberta, and British Columbia — establish the following:

- In 2023/2024, Indigenous adults made up 33.2 percent of the average daily count of the custodial population in provincial and federal facilities across the six reporting provinces — 8,734 Indigenous adults of a 26,297 custodial population.
- Indigenous adults were incarcerated at a rate 10.2 times higher than non-Indigenous adults. This is measured by the overrepresentation index, which controls for age and gender differences between populations.
- Saskatchewan held the highest overrepresentation index at 19.4 times. Alberta specifically stood at 10.2 times — identical to the national average across reporting provinces. British Columbia at 9.4. Ontario at 8.3. Prince Edward Island at 3.4.
- The overrepresentation index rose every year for five consecutive years. In 2019/2020, the Indigenous incarceration rate was 8.1 times the non-Indigenous rate. By 2023/2024, it had risen to 10.2. This is not a plateau. This is not a reversal. This is a sustained worsening of a problem the Supreme Court of Canada named a crisis in 1999.
- Overall, 2.6 percent of the Indigenous adult population was incarcerated at some point during the 2023/2024 reference year — a measure Statistics Canada calls the custody involvement rate. Among Indigenous men aged 35 to 44 years, this rate rose to 7.3 percent — more than one in every fourteen Indigenous men in that age cohort passing through custody in a single year.

Indigenous women

The deterioration for Indigenous women is sharper than the male average and has specific gendered characteristics. Statistics Canada documented:

- The overrepresentation index for Indigenous women rose from 12.6 in 2019/2020 to 18.4 in 2023/2024, peaking at 18.5 in 2022/2023.
- Indigenous women's incarceration rate rose 22 percent between 2019/2020 and 2023/2024, while non-Indigenous women's incarceration rate declined by 11 percent in the same period.
- At the federal level, Indigenous women account for 50 percent of all federally incarcerated women (as of 2023 data, reported in the UN Working Group on Arbitrary Detention report of August 4, 2025).
- Indigenous women account for 65 percent of sentenced women in maximum security custodial centres across Canada (as of April 2022, Correctional Service of Canada data).

Indigenous women are approximately five percent of the Canadian adult population. They are half of the federally incarcerated women. They are nearly two-thirds of the women in maximum security. The gendered arithmetic is as severe as any numerical disparity documented in this report.

Federal incarceration

At the federal level, where sentences of two years or more are served, the documented data (as reported by the UN Working Group on Arbitrary Detention in August 2025 and summarized by Public Safety Canada briefing documents):

- Indigenous people are approximately five percent of the Canadian adult population.
- Indigenous people account for 32 percent of detainees in federal custody.
- In 2020, that figure was 30 percent; in 2001, 18 percent. The proportion has risen in every measured interval.
- The UN Working Group reported that in some provincial detention facilities, up to 70 or 80 percent of inmates were Indigenous.

Indigenous people are not inherently more criminal. We are more criminalized. — Kory Wilson, Chair, BC First Nations Justice Council, January 2026"

Part 2: Gladue, Ipeelee, and Canada's acknowledged failure

R v Gladue (1999)

In 1999, the Supreme Court of Canada delivered its decision in R v Gladue, 1999 CanLII 679 SCC, [1999] 1 SCR 688. Jamie Gladue was a young Indigenous woman convicted of the

manslaughter of her common-law husband. The question before the Court was how section 718.2(e) of the Criminal Code — a provision enacted in 1995 directing sentencing judges to consider sanctions other than imprisonment with particular attention to the circumstances of Aboriginal offenders — should be applied.

The Supreme Court's answer established the Gladue framework. Sentencing judges have a statutory duty to give force to section 718.2(e). For Aboriginal offenders, this requires a different method of analysis that considers: the unique systemic or background factors that have played a part in bringing the Aboriginal offender before the court; and the types of sentencing procedures or sanctions appropriate in the circumstances for the offender because of their Aboriginal heritage or connection.

The Court characterized the overrepresentation of Indigenous people in the Canadian prison and criminal justice system as “a crisis in the Canadian criminal justice system.” At the time of the Gladue decision in 1999, Indigenous people were approximately three percent of the Canadian population and seventeen percent of the prison population. The Court called that disparity a crisis. By 2023/2024 data, Indigenous people are approximately five percent of the Canadian adult population and 33.2 percent of the custodial population in the reporting provinces. The disparity has nearly doubled since the Court named it a crisis. It remains, by the Court's own framing, a crisis.

R v Ipeelee (2012)

In 2012, the Supreme Court delivered R v Ipeelee, 2012 SCC 13, [2012] 1 SCR 433. The case reaffirmed Gladue and went further. At paragraph 57, the Court explicitly acknowledged that the Canadian criminal justice system “has failed the Aboriginal peoples of Canada.” That sentence is not advocacy commentary. It is a finding by the highest court in Canada.

Ipeelee also made clear that judges have a duty to take judicial notice of systemic and background factors affecting Indigenous offenders, including: the history of colonialism; displacement; the residential schools and their continuing effects on lower educational attainment, lower income, higher unemployment, higher rates of substance abuse and suicide; the Sixties Scoop; and the cumulative intergenerational consequences of these forces. These are not factors the judge may consider if raised. They are factors the judge must take notice of. The Supreme Court established a national legal standard of acknowledgment of Canada's complicity in producing the conditions that bring Indigenous offenders before the courts.

If Gladue recognized the extent of the Indigenous over-incarceration problem, Ipeelee is an explicit acknowledgement of Canada's complicity in creating this problem and contributing to its perpetuation. The Court acknowledges that the Canadian criminal justice system has failed the Aboriginal peoples of Canada. — Department of Justice Canada,

*Spotlight on Gladue: Challenges, Experiences, and Possibilities in
Canada's Criminal Justice System, 2017"*

Why the legal framework has not produced proportional remedy

Despite the Gladue and Ipeelee rulings, the overrepresentation of Indigenous people in Canadian custody has increased in nearly every measurable interval since Gladue was decided. As documented by the Honourable Harry LaForme, retired justice of the Ontario Court of Appeal, writing in public commentary: since the 1999 Gladue decision, non-Indigenous imprisonment numbers have decreased each year, while Indigenous imprisonment numbers have increased annually. The legal framework has failed to produce the remedy the Supreme Court mandated.

Several mechanisms, documented in the peer-reviewed literature and government reviews, explain this failure:

- Gladue Reports are unevenly available. Ontario has specialized Gladue Courts and trained Gladue report writers. Most of the rest of Canada does not. An Indigenous offender's access to a properly prepared Gladue report depends on where they are sentenced, not on their Aboriginal status per se.
- Where Gladue reports are prepared, they are frequently given perfunctory attention at sentencing. Former Justice LaForme has documented that in many courts, Gladue is "merely referred to in passing in court, if at all, without any assessment of its impact or intended purpose."
- Community-based restorative alternatives to incarceration, which Gladue called for, remain underfunded and unevenly distributed. The culturally safe programs and Indigenous-led diversion initiatives that would operationalize Gladue are described by the BC First Nations Justice Council and others as "often underfunded."

Gladue as sword, not shield — the structural subversion

The most devastating documented subversion of the Gladue framework occurs at the point where Gladue reports transition from the sentencing stage into the correctional system. Howard Sapers, former Correctional Investigator of Canada, and former Justice Harry LaForme have both publicly documented the following pattern:

- The Gladue report is prepared for sentencing. Its purpose, per the Supreme Court, is to assist the court in finding alternatives to imprisonment by contextualizing the Indigenous offender's background factors.
- The Gladue report, once prepared, becomes part of the correctional file.
- Corrections Canada uses the same Gladue report — the same documented history of colonialism, residential schools, foster care, poverty, addiction, trauma — as evidence of the

offender's likelihood to reoffend. The report that was supposed to reduce the sentence becomes the evidence that denies early release.

Former Justice LaForme has named this explicitly: Corrections Canada uses Gladue reports "as a sword instead of a shield." Howard Sapers has stated that "when that Gladue report is shared with corrections, all of those things become risk factors." The colonial factors the Supreme Court directed judges to consider in mitigation at sentencing are, in the correctional system, treated as aggravating factors in determining parole eligibility, security classification, and programming access.

In one measure of the pattern, discretionary releases for Indigenous offenders have increased from 23.5 percent in fiscal 2013-2014 to 38.6 percent in fiscal 2020-2021 — meaningful improvement. In another measure, the overrepresentation index across all forms of custody has risen from 8.1 in 2019-2020 to 10.2 in 2023-2024 — meaningful worsening. Both data sets can be true simultaneously: improved parole outcomes for those who receive them; increased overall incarceration for the Indigenous population as a whole. The latter measure is the one that determines whether the Supreme Court's 1999 crisis has been addressed. It has not been.

Part 3: The foster-care-to-prison pipeline

The two-thirds finding

The mechanism connecting Section 9 to Section 10 is statistically documented in the correctional literature: two-thirds of all Indigenous inmates in Canadian federal custody have been in foster care at some point in their childhood. This is not an informal estimate. It is the documented prevalence of the foster-care background among Indigenous federal inmates, as recorded in Correctional Service of Canada intake data and cited in the Department of Justice Canada's Gladue research literature.

The implications are direct. The Alberta provincial child welfare system documented in Section 9, operating with a 72 percent Indigenous caseload, is a primary feeder of the Canadian federal corrections system. An Indigenous child apprehended in Alberta at age four is statistically at substantially elevated risk of entering the corrections system at age eighteen or twenty or twenty-five. The 17-to-1 apprehension disparity that Section 9 documented becomes a 10.2-to-1 incarceration disparity documented here. The pipeline is not metaphorical. It is numerical.

Dr. Pamela Palmater on the pipeline

Dr. Pamela Palmater, Mi'kmaq lawyer and Chair in Indigenous Governance at Toronto Metropolitan University, has documented the pipeline publicly:

If you steal a child from a First Nation family and that child goes into foster care, we know from the statistics they're far more likely to end up in youth corrections or homeless or trafficked. — Dr. Pamela Palmater"

Palmater's analytic frame places the over-incarceration of Indigenous people in historical context:

In order to truly understand the over-incarceration of Indigenous peoples in Canada, you have to go back to contact. When colonial governments established themselves on native territories in order to steal our territories and our resources, they had to find ways to oppress us, contain us, control us, and remove us from those territories: trapping us on reserves, sending our kids to residential schools, scalping bounties, forced sterilizations. It's always for the same purpose: to get our lands and resources. — Dr. Pamela Palmater

Palmater characterizes the overall pattern explicitly: “The over-incarceration of Indigenous peoples in Canada is a form of genocide — and it’s a series of grave human-rights violations.” The characterization is consistent with the legal finding in Ipeelee (2012) at paragraph 57 that the Canadian criminal justice system has failed the Aboriginal peoples of Canada, and with the UN Working Group on Arbitrary Detention’s August 2025 report of being “deeply concerned” about continuing overrepresentation.

The Gladue factors named

Howard Sapers, former Correctional Investigator of Canada, has summarized the factors the Supreme Court in Gladue and Ipeelee directed judges to take notice of:

You can see all of this dislocation from community, from place. Being disempowered in terms of economic participation. Even access to education and sometimes to health care. All of these things, taken together, have created a big gap in outcomes between what an Indigenous young man or young woman can expect in their lifetime versus a non-Indigenous Canadian can expect in their lifetime. These have been called Gladue factors. — Howard Sapers, former Correctional Investigator of Canada

The Gladue factors are the same factors this report has been documenting across Sections 1, 4, 5, 6, 7, 8, and 9. Dislocation from community. Disempowerment in economic participation. Lack of access to education. Lack of access to healthcare. Each of those factors corresponds to a section of this report. Section 10 is the stage at which the cumulative effect of those factors is translated into custody. The Supreme Court of Canada named these as the things judges must take judicial notice of. This report documents them as the things they are: the upstream causes

of the downstream overrepresentation. Every Gladue factor is in this report. The report and the Supreme Court are looking at the same pattern from different angles.

Part 4: Twenty years after 2005 — the UN returns

The UN Working Group on Arbitrary Detention, August 4, 2025

In 2005, the United Nations Working Group on Arbitrary Detention conducted an official country visit to Canada. Its findings included concern about the overrepresentation of Indigenous people in Canadian detention facilities. On August 4, 2025, the same Working Group published its updated report on Canada — twenty years later. Its characterization was direct: the Working Group is “deeply concerned” about the continuing overrepresentation of Indigenous people in Canada’s justice system.

The August 2025 report documented that data from 2023 showed Indigenous people at approximately five percent of Canada’s adult population but 32 percent of detainees in federal custody and 50 percent of all incarcerated women. In some provincial detention facilities, the Working Group reported, up to 70 or 80 percent of inmates were Indigenous. The Working Group noted, in comparison, an 88 percent decrease in the overall youth incarceration rate between 1997-1998 and 2020-2021 as one positive development — establishing that substantial reductions are possible when political will is applied. The absence of comparable reduction in Indigenous adult incarceration over the same period is, by implication, the absence of comparable political will.

The structural significance of the UN Working Group’s August 2025 report is twofold. First, it establishes that Canada’s compliance with its international human rights obligations on arbitrary detention has not meaningfully improved in twenty years. The Working Group’s “deeply concerned” framing is diplomatic language for sustained documented non-compliance. Second, it places Canada’s Indigenous incarceration record in the same international reporting cycle as the UN Committee on the Rights of Persons with Disabilities recommendations (referenced in Section 17 of this report) and the UN Committee on the Elimination of Racial Discrimination observations — a coordinated international record that Canada’s own governments have chosen not to respond to with proportional reform.

The UN Working Group on Arbitrary Detention visited Canada in 2005 and raised concerns about Indigenous overrepresentation in Canadian prisons. It published its 2025 follow-up report on August 4, 2025. Its conclusion was “deeply concerned.” The word “deeply” is the diplomatic acknowledgment that twenty years of Canadian policy response has not been sufficient to address what the Supreme Court of Canada itself called a crisis in 1999.”

Part 5: What it costs to incarcerate versus what it costs to support

The arithmetic

The Alberta Disability System Breakdown report series includes destabilization cost modelling prepared by Gavin Sorochan, Edmonton community organizer and founder of Continuum Care Foundation. The modelling establishes per-person annual costs when disability income support is withdrawn and crisis services fill the gap. Provincial incarceration, where it occurs, is one of those crisis services. The per-person annual cost of provincial incarceration in Alberta is documented at \$60,000 to \$80,000.

The annual cost of AISH support at the base rate is \$20,772. The cost ratio is therefore approximately 3-to-4 times higher for provincial incarceration than for AISH support of the same person — assuming the AISH-destabilized person reaches provincial incarceration, which not all will. For federal incarceration, where sentences of two years or more are served, the per-person annual cost rises substantially further. The Correctional Service of Canada's per-inmate average cost is in the \$115,000 range, with Indigenous-specific programming costs often higher.

For an Indigenous disabled Albertan specifically — the population this report documents throughout — the fiscal arithmetic of the July 1, 2026 ADAP transition and the broader dismantlement of disability supports documented in the main report series intersects with the justice system arithmetic documented here. If the ADAP transition pushes even a small percentage of Indigenous disabled Albertans into the crisis cascade that produces justice system contact, the provincial fiscal saving from reducing AISH expenditure is transferred into the corrections budget at three to four times the per-person cost. The province does not save money. It spends the same money on the same people through a different administrative apparatus, and it does so at a higher per-person rate.

The specific risk compound

For a disabled Indigenous Albertan, the cascade risk has specific dimensions this section can now articulate. If AISH benefits are reduced or revoked under the July 1, 2026 transition — and the physician-completed form requirement documented in Section 7 makes revocation structurally likely for patients without family physicians — the loss of income triggers:

- Housing instability (documented in Section 4) produces homelessness for a population that was already paying more than the AISH benefit in rent.
- Loss of prescription medication access (documented in Sections 7 and in the dual NIHB/AHS framework) produces medication discontinuation for psychiatric, pain management, and chronic disease conditions.
- Medication discontinuation in psychiatric populations produces crisis — emergency department visits (up 47 percent in Alberta prior to the ADAP transition, per Alberta Doctors'

Digest), psychiatric hospitalizations, and in some cases behavioural episodes that bring police contact.

- Police contact in a population with cognitive, communication, or mental health profiles that interact badly with police intervention — the same profiles the AISH qualifying criteria capture — produces documented escalation risk, including use-of-force incidents and custody admissions.
- Custody admission initiates the provincial administrative process documented in the Alberta IES Policy Manual — including the SEIP 3850-1 AFSS Match between LISA and Alberta Justice Inmate Records, ORCA number tracking, system closure procedures, and the creation of debt in the provincial Recoveries System against the disabled person. The same ministry that stopped paying AISH starts recovering debt.

This cascade is not speculative. Each step is documented in provincial administrative policy manuals, in Statistics Canada data, in peer-reviewed literature on disability and police interaction, and in the Correctional Service of Canada's own admission data. The structure that produces the cascade is built into the interaction between the AISH/ADAP administrative system and the corrections administrative system. Both systems are operated by the same provincial government.

Part 6: What the Alberta provincial policy manual acknowledges

The Government of Alberta's Income and Employment Supports Training and Health Benefits (IESTHB) Policy Manual contains detailed administrative policy on how Income Support treats clients who become incarcerated. The policy establishes that provincial Income Support workers are required to review the SEIP 3850-1 AFSS Match between the provincial Income Support system (LISA) and Alberta Justice Inmate Records, identifying active Income Support clients who have been admitted to provincial correctional centres. The match report provides admit dates, aggregate sentences, ORCA numbers, correctional centre identification, and self-reporting flag status.

Upon identification of an incarcerated Income Support client, the worker is directed to take specific actions: system closure of the file, referral to the Fraud Investigation Unit where applicable, creation of a debt in the Recoveries System, and adjustment of the household unit's benefit level. The policy provides that child care or homemaking is not provided for the children of a person who has been incarcerated; the family is referred to Children's Services — the same provincial ministry whose 72 percent Indigenous child welfare caseload Section 9 documented.

The structural significance is that Alberta's own written policy documents, in administrative detail, the seamless operational interface between the Income Support system and the provincial corrections system. The same ministry's database systems talk to each other. The match runs on a scheduled basis. The debt recovery process activates automatically. The children of the incarcerated disabled person are referred into the child welfare system that Section 9 documented. Three provincial administrative systems — Income Support, Alberta

Justice Corrections, and Children and Family Services — operate as a single coordinated apparatus for the specific population this report documents. The coordination exists. What does not exist is a parallel coordination of supports to keep the disabled Indigenous Albertan out of that apparatus in the first place.

Alberta's own written policy documents the data-match system between LISA (Income Support) and Alberta Justice Inmate Records, the debt creation that activates automatically when a client enters custody, and the referral of that client's children into the Children and Family Services system. The operational integration between disability support withdrawal, incarceration, and child apprehension is not accidental. It is administratively coordinated by the provincial government, in its own policy manual, in specific detail."

What this section establishes for the remainder of the report

The Supreme Court of Canada named the overrepresentation of Indigenous people in Canadian custody a crisis in 1999. In 2012, the same Court acknowledged that the Canadian criminal justice system had failed the Aboriginal peoples of Canada. In 2015, the Truth and Reconciliation Commission's Call to Action 30 demanded elimination of the overrepresentation within a decade. That decade has expired. Statistics Canada's January 2026 release documents Indigenous adults incarcerated at 10.2 times the non-Indigenous rate — up from 8.1 just five years earlier. Indigenous women at 18.4 times. Indigenous women at 50 percent of federally incarcerated women. The UN Working Group on Arbitrary Detention "deeply concerned" in 2025, with the same concern it raised in 2005.

Two-thirds of Indigenous people in federal custody have been in foster care. The 72 percent Indigenous child welfare caseload documented in Section 9 is the early-stage data for the 33.2 percent Indigenous adult custody figure documented here. The population is the same. The pipeline is documented. The administrative coordination of disability withdrawal, incarceration, and child apprehension is written into the Alberta IES Policy Manual in explicit detail.

For the Indigenous disabled Albertan this report documents, the justice system is not a separate policy file. It is the downstream end of the same administrative machinery this report has been tracing since Section 1. Residential schools produced the trauma. Contaminated land produced the disability. Poisoned water compounded it. The dual healthcare system fails to treat it. Jordan's Principle fails to support it in childhood. The child welfare system apprehends its carrier. The justice system incarcerates its adult. At each stage, Canada's federal and provincial governments acknowledge the failure in written documents — Supreme Court rulings, coroner's inquests, Auditor General reports, class action settlements, Canadian Human Rights Tribunal orders, UN reports — and do not produce proportional remedy.

Sections 11 through 15 will address MMIWG2S+, consultation failure, the Sovereignty Act's relationship to Treaty, TRC Calls to Action 18 through 24, and the July 1, 2026 ADAP transition synthesis. The pattern documented in Section 10 — federal legal obligation, sustained non-compliance, documented cost transfer, coordinated provincial administrative apparatus operating against the documented population — continues into those sections. The specific face of the Indigenous disabled Albertan varies. The structural pattern does not.

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